

STATE OF NEW YORK

10435 -- A

IN ASSEMBLY

March 6, 2026

Introduced by M. of A. STIRPE -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to authorizing and directing the commissioner of education establish rules and regulations for a college or university seeking to cease operations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 305 of the education law is amended by adding a new
2 subdivision 63 to read as follows:

3 63. The commissioner is authorized and directed to promulgate rules
4 and regulations that shall establish an orderly process for the closure
5 of a college or university. Such rules and regulations shall include,
6 but not be limited to:

7 (a) any decision to cease operations at a college or university shall
8 be made public and disclosed at least one year prior to the proposed
9 closing date;

10 (b) any college or university ceasing operations shall provide details
11 on any plans to sell, transfer, or utilize campus resources, including
12 but not limited to buildings, grounds, and facilities to local govern-
13 ments at least six months prior to the proposed closing date, or as much
14 as is practical; and

15 (c) any college or university ceasing operations that shares responsi-
16 bility for or provides shared services to local governments or agencies
17 for programs or physical operations shall develop a transition plan with
18 the relevant partner at least four months prior to the proposed closing
19 date, or as much as is practical.

20 § 2. This act shall take effect one year after it shall have become a
21 law. Effective immediately, the addition, amendment and/or repeal of any
22 rule or regulation necessary for the implementation of this act on its
23 effective date are authorized to be made and completed on or before such
24 effective date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD06832-02-6